



CHAPTER xi.

An Act to provide for the winding up and dissolution of the North Metropolitan Tramways Company and for other purposes. A.D. 1906.
—
[29th May 1906.]

WHEREAS the North Metropolitan Tramways Company (in this Act called "the Company") were incorporated by the North Metropolitan Tramways Act 1869 and under the powers of that and subsequent Acts constructed and acquired tramways in the counties of London Middlesex and Essex :

And whereas on the seventeenth day of August one thousand nine hundred and five the Company entered into an agreement with the London County Council (in this Act called "the Council") with reference to the surrender by the Company to the Council of a certain lease dated the fourteenth day of October one thousand eight hundred and ninety-seven (in this Act called "the said lease") and other matters mentioned in such agreement and it is expedient that the said agreement should be confirmed and that the said lease should be surrendered and that provision should be made as contained in this Act for the winding up and dissolution of the Company :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the North Metropolitan Tramways Short title.
(Winding up) Act 1906.

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Surrender of
lease.

2. The agreement which (with the exception of the schedules thereto) is set forth in the schedule to this Act (in this Act referred to as "the scheduled agreement") is hereby confirmed and made binding on the parties thereto and the said lease shall be surrendered by the Company to the Council subject to and in accordance with the provisions of the scheduled agreement.

Receipt of
Company to
be discharge
to Council.

3. The receipt of the Company shall be a sufficient discharge to the Council for any purchase or other moneys paid to the Company by the Council under or in pursuance of the scheduled agreement notwithstanding the existence of any mortgage debenture charge or other incumbrance affecting the undertaking of the Company or any part thereof or affecting the tramways or other property agreed to be surrendered or sold to the Council by the scheduled agreement or any part thereof respectively. Provided always that nothing herein contained shall prejudice or affect any rights or claims of any mortgagee debenture holder or other incumbrancer of the Company against any such moneys.

As to reduc-
tion of
capital.

4.—(1) The Company may by extraordinary resolution reduce their paid-up share capital by payment to and distribution amongst the shareholders of any moneys received by them under or in pursuance of the scheduled agreement or of any capital in excess of the wants of the Company but no such resolution shall come into operation until confirmed by the High Court (herein-after referred to as "the Court") The repayment of capital shall not revive any liability for calls but each share in the said capital shall be deemed reduced by the amount repaid in respect thereof.

(2) The Company when they have passed an extraordinary resolution for reducing their capital may apply to the Court by petition for an order confirming the reduction and on the hearing of the petition the Court may make an order confirming the reduction resolved upon or any less reduction.

(3) Upon any reduction of capital the certificates of shares reduced shall be deposited with the Company and be endorsed with a note of the amount by which the share is reduced and (subject to the right of a shareholder to have replaced a certificate lost or defaced) until a certificate is so endorsed the holder of the shares represented thereby shall not be entitled to any money payable thereon either as return of capital or future dividends.

(4) In this section the expression "extraordinary resolution" means a resolution passed by a majority of three-fourths of the votes of the shareholders present in person or by proxy and entitled

to vote and voting at a general meeting of the Company duly convened with notice of the object of the meeting. A.D. 1906.

5. When the Company have disposed of all their remaining assets the Company shall be wound up in accordance with the provisions of the Companies Acts 1862 to 1900 with respect to the voluntary winding up of companies registered under that Act. Provided always that it shall not be necessary for the Company to pass a special resolution requiring the Company to be wound up voluntarily and that for the purposes of calling and holding meetings and passing resolutions and other matters incident to such winding up resolutions of meetings of the Company convened and held in pursuance of and in accordance with the Acts of Parliament of the Company and the Acts incorporated therewith may and shall take effect as resolutions of a company duly registered. And the Company shall within fourteen days of the appointment of the liquidator or liquidators in such winding up pay to the said liquidator or liquidators all moneys then in their hands or under their control and in the meantime shall hold such moneys in trust for the said liquidator or liquidators and all such moneys shall be applied by the said liquidator or liquidators as part of the assets of the Company.

Company to be wound up and dissolved.

On the completion of the winding up of the Company in accordance with the provisions of this Act the Company shall by virtue of this Act be dissolved.

6. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same with the papers of the Metropolitan Electric Tramways Limited and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

Copy of Act to be registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

7. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1906.

The SCHEDULE referred to in the foregoing Act.

Stamp.

Ten
Shillings.

This INDENTURE made the seventeenth day of August one thousand nine hundred and five between the LONDON COUNTY COUNCIL (herein-after called "the Council") of the first part the NORTH METROPOLITAN TRAMWAYS COMPANY (herein-after called "the North Metropolitan Company") of the second part and the METROPOLITAN ELECTRIC TRAMWAYS LIMITED (herein-after called "the Metropolitan Electric Company") of the third part.

WHEREAS the North Metropolitan Company were prior to the thirtieth day of December one thousand nine hundred and three owners of certain lines of tramways made in the public highways namely:—

- (A) A tramway (herein-after called "the Stamford Hill Tramway") in Stamford Hill in the parish of Hackney being the tramway on that portion of Stamford Hill which lies between Amhurst Park Road and the boundary between the counties of Middlesex and London which said tramway is on the road coloured brown on the plan hereunto annexed:
- (B) A tramway (herein-after called "the Green Lanes Tramway") in the parish of Stoke Newington being the tramway on that portion of Green Lanes which lies between Seven Sisters Road and the said county boundary near Hermitage Road which said tramway is on that part of Green Lanes coloured blue on the said plan:
- (C) A tramway (herein-after called "the Seven Sisters Road Tramway") in Seven Sisters Road in the parish of Stoke Newington being the tramway on that portion of Seven Sisters Road which lies between Green Lanes and the said county boundary near Amhurst Park Road which said tramway is on that part of Seven Sisters Road coloured blue on the said plan:
- (D) A tramway (herein-after called "the Boundary Tramway") being the tramway on that portion of Seven Sisters Road lying between Stroud Green Road and Green Lanes and which is coloured purple on the said plan:

And whereas the Stamford Hill Tramway the Green Lanes Tramway and the Seven Sisters Road Tramway are entirely in the county of London and the Boundary Tramway is partly in the county of London and partly in the

county of Middlesex and the boundary of the county runs between the two tramway tracks down the centre of that part of Seven Sisters Road in which the Boundary Tramway is laid : A.D. 1906.

And whereas an indenture of agreement was made on the fifth day of December one thousand eight hundred and ninety-one between the Council of the one part and the North Metropolitan Company of the other part (which said agreement was scheduled to and confirmed by the North Metropolitan Tramways Act 1892):

And whereas by section 4 of the North Metropolitan Tramways Act 1897 the North Metropolitan Company were authorised to construct (inter alia) a double line of tramway (therein called Tramway No. 15) in lieu of the then present single line with passing places in Seven Sisters Road commencing at a point about two chains west of Green Lanes and terminating at the junction of Seven Sisters Road with Tottenham High Street part of which double line of tramway consists of the Seven Sisters Road Tramway herein-before mentioned and were also by the said Act authorised to construct a double line of tramway (therein called Tramway No. 16) in lieu of the then present single line with passing places in Green Lanes between a point about two chains south of Seven Sisters Road and the termination of the tramway at Wood Green part of which double line of tramway consists of the Green Lanes Tramway herein-before mentioned :

And whereas by section 22 of the North Metropolitan Tramways Act 1897 the carriages used on the tramways by that Act authorised or any tramways for the time being leased to or run over worked or used by the North Metropolitan Company might be moved by animal power or subject to the provisions therein contained and (as regards any tramways in the county of London) to the agreement set forth in the First Schedule to the Act by mechanical power and by the same section it was provided (inter alia) that mechanical power should not be used except with the consent of the Board of Trade :

And whereas by section 24 of the North Metropolitan Tramways Act 1897 the North Metropolitan Company were authorised to lay down construct erect and maintain such of the works specified in the said section as might be necessary or convenient either for working the tramways by that Act authorised or any tramways for the time being leased to or run over by the Company or for providing access to or forming connexions with any generating stations engines machinery or apparatus Provided that the powers of the said section should not be exercised in any place within the administrative county of London and by section 50 of the said Act it was enacted that the tramways should be completed within two years from the passing of the Act and on the expiration of that period the powers by the Act granted to the said Company for constructing the tramways or otherwise in relation thereto should cease except as to so much thereof as should then be completed :

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And whereas by section 31 of the North Metropolitan Tramways Act 1897 the agreement dated the twenty-seventh day of May one thousand eight hundred and ninety-seven set forth in the First Schedule to the Act was thereby confirmed and made binding upon the parties thereto :

And whereas by clause 10 of the said agreement set out in the First Schedule to the said Act it was provided that the North Metropolitan Company should construct such of the tramways in the county of London mentioned in two Bills then being promoted by them (being the two Bills afterwards consolidated into the North Metropolitan Tramways Act 1897) as the Council should by writing under their seal direct but no others or other and that the North Metropolitan Company should sell and the Council should purchase such tramways when completed at the price therein mentioned and that such tramways should thereupon be made subject to the lease to be granted as therein mentioned being the lease of one thousand eight hundred and ninety-seven herein-after referred to :

And whereas by an indenture dated the fourteenth day of October one thousand eight hundred and ninety-seven (herein-after called "the lease of one thousand eight hundred and ninety-seven") and made between the Council of the one part and the North Metropolitan Company of the other part the Council demised to the North Metropolitan Company (inter alia) certain tramways in the county of London (therein-after called "the tramways") which did not include any part of the Stamford Hill Tramway Green Lanes Tramway Seven Sisters Road Tramway and Boundary Tramway for a term expiring on the twenty-fourth day of June one thousand nine hundred and ten :

And whereas the rents payable under the lease of one thousand eight hundred and ninety-seven included (thirdly) a yearly rent to be payable and paid on the twenty-fifth day of March in each year equal to twelve and a half per cent. of the amount by which the gross receipts during the year ended on the previous thirty-first day of December from all the existing lines of tramway for the time being of the North Metropolitan Company within and outside the county of London (including the tramways thereby demised and any tramway outside such county thereafter purchased by the local authority having power in such behalf and subsequently demised to the North Metropolitan Company) exceeded the gross receipts from such lines and tramways for the year one thousand eight hundred and ninety-five (which last-mentioned gross receipts were thereby declared and agreed to have been the sum of six hundred and sixteen thousand eight hundred and seventy-two pounds five shillings and sevenpence) and (fourthly) all such further or additional rents as might thereafter become payable in pursuance of the clause numbered 27 therein-after contained :

And whereas by the eighth of the lessees covenants in the lease of one thousand eight hundred and ninety-seven the North Metropolitan Company covenanted that they would not use steam cable electric or any power other than animal power upon the tramways or any part thereof unless they should

have first obtained the special permission of the Council in writing under their seal: A.D. 1906.

And whereas by the fifteenth of the said covenants the North Metropolitan Company covenanted that they would at all times during the continuance of the demise repair maintain and renew or reconstruct the tramways as and when necessary and to the satisfaction of the chief engineer of the Council:

And whereas by the sixteenth of the said covenants the North Metropolitan Company covenanted that they would provide a fund to be applied in or towards the renewal or reconstruction of the tramways by them by setting apart every half-year part of the receipts of the North Metropolitan Company so that during each of the first four periods of three years of the term thereby granted the sum set apart should not be less than thirty-seven thousand five hundred pounds and in each of the last two years of such term the sum set apart should not be less than twelve thousand five hundred pounds and that during the said periods of three years not less than twelve thousand five hundred pounds should if practicable be set apart in each year and that the fund so to be provided should be invested in the joint names of the Council and the North Metropolitan Company in stock transferable in the books of the Bank of England the interest or dividends of the fund so provided and not for the time being applied for the purpose aforesaid to be accumulated in the way of compound interest and invested as aforesaid:

And whereas by the twenty-second of the said covenants the Council might from time to time give notice to the North Metropolitan Company of any want of repair or renewal or reconstruction coming within the covenants in that behalf of the said Company therein-before contained and might require the said Company forthwith to execute the same and the said Company covenanted that they would upon receipt of any such notice forthwith at their expense execute such repairs and renewals and reconstruction and complete the same to the satisfaction of the Council:

And whereas by the twenty-seventh of the said covenants it was covenanted agreed and declared that in the event of the Council deciding to adopt electrical or other mechanical power on the whole or part of the tramways the Council or the North Metropolitan Company at the option of the former should so far as might be necessary for that purpose reconstruct in the first instance the permanent way the Council in either case paying the cost and provision was therein made for the payment of rents after the reconstruction of the lines:

And whereas by the thirty-second of the said covenants the North Metropolitan Company covenanted that they would if required by the Council so to do work on similar terms and conditions to those in the lease and for a term expiring at Midsummer one thousand nine hundred and ten any additional lines of tramways that might be purchased or constructed by the Council during the continuance of the demise in connexion with the lines of tramway thereby demised and would pay to

A.D. 1906. — the Council in respect thereof a rent equal to eight per cent. per annum upon the total cost certified as therein mentioned of purchase or construction and from the dates therein mentioned and further that for the purpose of computing the amount of the rent by the reddendum of the lease thirdly reserved as from the time of any such additional line or lines being so purchased or constructed and worked by the North Metropolitan Company there should be added to the amount as therein-before specified and agreed of the aforesaid gross receipts in one thousand eight hundred and ninety-five in respect of each extension constructed or line purchased by the Council after the date of the lease and worked by the North Metropolitan Company such sums as are specified in the thirty-second covenant aforesaid for the several years respectively therein mentioned :

And whereas by section 26 of the London County Tramways (Electrical Power) Act 1900 the proviso to section 24 of the North Metropolitan Tramways Act 1897 as herein-before recited was repealed :

And whereas the Council on the twentieth day of November one thousand nine hundred and one gave to the North Metropolitan Company notice in writing that the Council intended in pursuance of the power reserved by the twenty-seventh of the said covenants to adopt electrical power for working the tramways the subject of the lease of one thousand eight hundred and ninety-seven :

And whereas on the second day of December one thousand nine hundred and two the highways committee of the Council gave to the North Metropolitan Company notice in writing that they intended to recommend that the work of reconstruction of such last-mentioned tramways should be carried out by the Council itself under the provisions of clause 27 of the lease of one thousand eight hundred and ninety-seven and the powers conferred by the London County Tramways (Electrical Power) Act 1900 :

And whereas on the same date the Council by notice in writing requested the North Metropolitan Company to state in writing what steps the North Metropolitan Company proposed to take to reconstruct forthwith the tramways specified in the schedule to such notice :

And whereas on the sixth day of April one thousand nine hundred and three the Council gave to the North Metropolitan Company notice in writing that the tramways referred to in the schedule thereto being part of the tramways demised by the lease of one thousand eight hundred and ninety-seven were found to be in want of repair or renewal and that the Council required the North Metropolitan Company to forthwith execute the repairs referred to in the first part of the said schedule and the renewals referred to in the second part of the said schedule and to complete the same to the satisfaction of the Council :

And whereas the tramways referred to in the last-mentioned notice dated the sixth day of April one thousand nine hundred and three were

included among the tramways referred to in the said notices dated the twentieth day of November one thousand nine hundred and one and the second day of December one thousand nine hundred and two: A.D. 1906.

And whereas negotiations have taken place between the Council and the North Metropolitan Company with regard to the execution of the repairs and renewals referred to in the said notice of the sixth day of April one thousand nine hundred and three and the North Metropolitan Company (while willing to execute and having in fact executed such repairs) have contended and still contend that the execution of such renewals is unnecessary and would involve fruitless expenditure if the tramways referred to in the said notice of the sixth day of April one thousand nine hundred and three are reconstructed for the purpose of adopting electrical power pursuant to the said notices of the twentieth day of November one thousand nine hundred and one and the second day of December one thousand nine hundred and two:

And whereas the North Metropolitan Company pursuant to the sixteenth of the said covenants have set apart from time to time a part of their receipts to provide a fund to be applied in or towards the renewal or reconstruction of the tramways demised by the lease of one thousand eight hundred and ninety-seven:

And whereas the unexpended balance of the said fund now consists of a sum of twelve thousand two hundred and ninety-one pounds two shillings and fourpence Colonial stocks standing in the joint names of the Council and the North Metropolitan Company:

And whereas by clause 30 of the lease of one thousand eight hundred and ninety-seven it was provided that the sum of fifty thousand pounds which had been deposited by the North Metropolitan Company with the Council as security for the due payment of the rents reserved by and the performance and observance of the covenants agreements and conditions contained in the said lease should be invested by the Council in their name in Metropolitan Two and a half per Cent. Consolidated Stock and that the dividends or interest arising from such investment should subject as therein provided be paid to the North Metropolitan Company as the same should accrue due:

And whereas the said sum of fifty thousand pounds was duly invested by the Council in the purchase of forty-nine thousand six hundred and eighty-nine pounds seven shillings and sixpence of the said stock and the dividends or interest on the said stock have from time to time been received by the Council and re-invested by them and are now represented by the sum of eleven thousand three hundred and forty-nine pounds four shillings and one penny of the said stock:

And whereas under the London County Tramways Act of 1900 the Council have constructed a tramway therein described as Tramway No. 1 in Constantine Road and Agincourt Road in the parish of Saint John

A.D. 1906. Hampstead in the county of London which said tramway (herein-after called the Agincourt Road Tramway) is connected at both ends with one of the tramways demised by the lease of one thousand eight hundred and ninety-seven and has been worked since the opening thereof on the first day of August one thousand nine hundred and one by the North Metropolitan Company pursuant to the thirty-second covenant aforesaid:

And whereas questions have arisen between the Council and the North Metropolitan Company as to the rent payable pursuant to the said thirty-second covenant in respect of the Agincourt Road Tramway and doubts have been raised as to the meaning and effect of the said thirty-second covenant:

And whereas the North Metropolitan Company have constructed (at the expense of the Council) a cross-over tramway in Upper Clapton Road in the parish of Hackney in the county of London (herein-after called the Upper Clapton Road Crossover) and by an indenture dated the thirtieth day of March one thousand nine hundred and five made between the Council of the one part and the North Metropolitan Company of the other part it was agreed that the said Upper Clapton Road Crossover should be treated as an additional line constructed by the lessors within the meaning of the thirty-second covenant aforesaid and that the North Metropolitan Company should pay to the Council in respect thereof the rent specified in the said indenture:

And whereas in the month of May one thousand nine hundred and three the Board of Trade acting under section 22 of the North Metropolitan Tramways Act 1897 gave their consent to the use of electrical power for working the Stamford Hill Tramway the Green Lanes Tramway the Seven Sisters Road Tramway and so much of the Boundary Tramway as is within the county of London:

And whereas by an indenture dated the thirtieth day of December one thousand nine hundred and three and made between the North Metropolitan Company of the one part and the Metropolitan Electric Company of the other part the North Metropolitan Company for the consideration therein mentioned with the sanction of the Board of Trade and pursuant to section 44 of the Tramways Act 1870 granted conveyed and assigned unto the Metropolitan Electric Company the undertaking of the Stamford Hill Tramway the Green Lanes Tramway and the Seven Sisters Road Tramway and so much of the Boundary Tramway as is situate within the county of London:

And whereas on the thirty-first day of October one thousand nine hundred and three an action was commenced in the King's Bench Division of the High Court of Justice between His Majesty's Attorney-General at and by the relation of the Council and the Council as plaintiffs and the North Metropolitan Company as defendants and the said action is now pending:

A.D. 1906.

And whereas the plaintiffs claim by their writ in the said action was for a declaration that the proposal to apply a system of supplying electrical energy to certain tramways worked by the defendants (being the tramways subsequently granted conveyed and assigned to the Metropolitan Electric Company as aforesaid) and to construct the works necessary for such system was illegal and not authorised by the North Metropolitan Tramways Act 1897 or any other statute in that behalf and would create a public nuisance by obstructing the highways and would constitute breaches of covenants by the defendants with the Council contained in the said agreements set forth in the First Schedule to the North Metropolitan Tramways Act 1902 and in the First Schedule to the North Metropolitan Tramways Act 1897 respectively and which were confirmed and made binding upon the parties thereto by the said Acts respectively and the plaintiffs claimed an injunction restraining the defendants from further proceeding with or using the said proposed system of supplying electrical energy to the said tramways and from constructing the works necessary for such system and from committing breaches of the said covenants:

And whereas on the sixteenth day of February one thousand nine hundred and four the Metropolitan Electric Company were added as defendants to the said action:

And whereas by their amended statement of claim in the said action the plaintiffs claimed against both defendants a declaration and injunction similar to that claimed by the writ against the North Metropolitan Company and claimed such relief on the grounds that the time for completing the works authorised by section 24 of the North Metropolitan Tramways Act 1897 had expired and that the working of the said tramways by the proposed system of supplying electrical energy would be a breach of a covenant by the North Metropolitan Company contained in the said indenture dated the fifth day of December one thousand eight hundred and ninety-one and that the working by the said proposed system of so much of the said tramways in Green Lanes and Seven Sisters Road as is wholly within the county of London would be a breach by the defendants so working the said tramways of clause 10 of the said agreement dated the twenty-seventh day of May one thousand eight hundred and ninety-seven:

And whereas the said defendants in their joint defence disputed the title of the plaintiffs or either of them to any of the relief so claimed and also disputed the said alleged grounds therefor and insisted as they still insist on the right of the said defendants to construct the works necessary for the electrification of the said tramways and to work the same by electric traction without obtaining the consent of the Council:

And whereas all the instruments documents writs and pleadings hereinbefore in these recitals mentioned or referred to are to be deemed to have been recited in full so that their contents may be treated as fully appearing by recital herein:

A.D. 1906.
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Now this indenture witnesseth that in order to put an end to the said action and to settle or remove the questions and doubts herein-before referred to as having arisen between the Council and the North Metropolitan Company the parties hereto so far as they are respectively interested in the subject-matter of this agreement hereby mutually agree as follows:—

1. The North Metropolitan Company shall on the first day of April one thousand nine hundred and six surrender to the Council and the Council shall on the same date accept the surrender of the lease of one thousand eight hundred and ninety-seven and all and singular the premises expressed to be demised by the lease of one thousand eight hundred and ninety-seven or such of the same premises as on the said first day of April one thousand nine hundred and six still remain subject to the lease of one thousand eight hundred and ninety-seven and also the Agincourt Road Tramway the Upper Clapton Road Crossover and all other (if any) additions to the tramways demised by the lease of one thousand eight hundred and ninety-seven which may be worked by the North Metropolitan Company under the lease of one thousand eight hundred and ninety-seven to the intent that the said lease and the several terms of years subsisting in the said premises respectively by virtue of the lease of one thousand eight hundred and ninety-seven and all other rights and interests thereby created and all the covenants and obligations of the lessees thereunder may thenceforth absolutely cease determine and be void. The said surrender shall be in such form as the Council and the North Metropolitan Company shall mutually agree upon as being necessary or proper. If any dispute or question shall arise as to the form or contents of the said surrender the same shall be referred to some counsel to be nominated in case the parties differ as to the selection by the President for the time being of the Incorporated Law Society on the request of either party. A duplicate of such surrender shall at the request and cost of the North Metropolitan Company be executed by the Council and delivered to the Company.

2. The North Metropolitan Company shall sell as on and from the said first day of April one thousand nine hundred and six and the Council shall purchase—

Firstly The said Company's interest in the several leases under-leases and tenancies described in the First Schedule hereto:

Secondly The office furniture and fittings an inventory whereof has for the purpose of identification been signed by the respective solicitors of the North Metropolitan Company and the Council:

Thirdly The horses cars harness stable utensils tools and plant whatsoever on the said first day of April one thousand nine hundred and six belonging to the North Metropolitan Company used in connexion with or for the purposes of the tramways hereby agreed to be surrendered or any of such tramways. All horses carriages tarpaulins coverings harness stable utensils tools and plant provided

for in the covenants in the lease of one thousand eight hundred and ninety-seven are included in this purchase Any question arising as to what animals or articles are included in the purchase shall be settled by Mr. John Young the late manager of the Glasgow Corporation Tramways or failing him by some other person to be mutually agreed upon or failing agreement by some person to be nominated by the Board of Trade :

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Fourthly The forage and consumable stock on the said first April one thousand nine hundred and six belonging to the North Metropolitan Company in connexion with or for the purposes of the aforesaid tramways or any of such tramways.

3. The consideration to be paid by the Council to the North Metropolitan Company for the surrender and sale aforesaid shall be (A) In respect of the surrender and the premises firstly and secondly herein-before in clause 2 described the sum of one hundred and twenty thousand pounds subject to such increase or reduction (if any) as herein-after mentioned (B) In respect of the premises thirdly in clause 2 herein-before described the amount at which the same shall be valued as herein-after provided (C) In respect of the premises fourthly in clause 2 herein-before described the cost price thereof to the North Metropolitan Company.

4. The valuation of the premises thirdly in clause 2 herein-before described as part of a going concern shall (unless otherwise agreed) be made in the manner provided by clause 31 of the lease of one thousand eight hundred and ninety-seven by some person to be mutually agreed upon or failing agreement by some person to be nominated by the Board of Trade and the North Metropolitan Company and the Council shall respectively take or concur in all such steps as may be necessary or proper to ensure that such valuation shall be completed on or before the said first day of April one thousand nine hundred and six The value of the same premises is estimated by the North Metropolitan Company at the sum of three hundred and fourteen thousand five hundred and eighty-six pounds and in the event of the amount of such valuation exceeding or falling below the amount of such estimate four times four per cent. of the difference shall in the event of the valuation exceeding the estimate be deducted from and in the event of the valuation falling below the estimate be added to the aforesaid sum of one hundred and twenty thousand pounds.

5. The North Metropolitan Company shall a reasonable time before April first one thousand nine hundred and six furnish to the Council all such information as the Council shall reasonably require to enable the Council to ascertain on or before the said first day of April one thousand nine hundred and six the price payable in respect of the premises fourthly in clause 2 herein-before described.

6. The consideration money payable in respect of the surrender and of the premises firstly and secondly described in clause 2 hereof shall be paid by the Council to the North Metropolitan Company or as the Company shall

A.D. 1906. — direct on or before the said first day of April one thousand nine hundred and six at the office of the said Company's solicitor Mr. Hugh C. Godfray 42 Finsbury Square in the county of London at which time and place the surrender and the purchase of the premises firstly and secondly described in clause 2 hereof shall be completed. If by reason of the valuation referred to in paragraph 4 hereof not being completed by the first of April one thousand nine hundred and six it shall not be possible to rectify the aforesaid sum of one hundred and twenty thousand pounds in accordance with the provisions of paragraph 4 hereof then the whole of the said sum of one hundred and twenty thousand pounds shall be paid to the North Metropolitan Company on the said first of April one thousand nine hundred and six and any necessary rectification of this sum shall be made good by addition to or deduction from (as the case may be) the amount payable to the North Metropolitan Company for the premises thirdly and fourthly in clause 2 herein-before described.

7. Possession of the several premises agreed to be surrendered or sold as aforesaid shall be retained and the outgoings discharged by the North Metropolitan Company up to the said first day of April one thousand nine hundred and six from which day all outgoings shall be discharged by and possession and the rents and profits accruing therefrom shall belong to the Council and all rents profits and outgoings including any rates and taxes made before but not demanded till after that day shall if necessary be apportioned for the purposes of this clause. If from any cause whatever (other than the default of the North Metropolitan Company or of their mortgagees (if any)) the surrender and the purchase of the premises firstly and secondly described in clause 2 hereof shall not be completed on or by the said first day of April one thousand nine hundred and six the Council shall pay to the North Metropolitan Company interest on the said sum of one hundred and twenty thousand pounds so increased or reduced as aforesaid at the rate of four pounds per cent. per annum from that day until the completion of the purchase.

8. On payment of the consideration money in respect of the surrender and of the premises firstly and secondly described in clause 2 hereof the Council shall be entitled to the surrender herein-before agreed upon and to an assignment of the North Metropolitan Company's interest in the several leases underleases and tenancies aforesaid and to delivery of such of the premises agreed to be sold as are capable of transfer by delivery. The North Metropolitan Company shall within one calendar month of the date of this indenture deliver to the Council an abstract of their title to the said premises. Every such assignment as aforesaid shall be prepared by and at the expense of the Council and the draft of every such assignment shall be left not less than twenty-eight days and the engrossment thereof shall be left not less than seven days before the said first day of April one thousand nine hundred and six at the office aforesaid for perusal and execution by or on behalf of the North Metropolitan Company.

9. The consideration money payable for the premises thirdly and fourthly described in clause 2 hereof shall be paid by the Council to the North Metropolitan Company or as the Company shall direct on or before the said first day of April one thousand nine hundred and six at the said office of the said Company's solicitor. If the amount of the consideration money shall not then have been ascertained as herein-before provided such consideration money shall be paid within fourteen days from the date when the amount thereof shall have been ascertained but the Council shall as from the first of April one thousand nine hundred and six be entitled to possession of the premises thirdly and fourthly described in clause 2 hereof or if from any cause whatever (other than the default of the North Metropolitan Company or of their mortgagees (if any) or of the Metropolitan Electric Company) the said consideration money shall not be paid on the first April one thousand nine hundred and six the Council shall pay to the North Metropolitan Company interest on the said consideration money at the rate of four pounds per centum per annum from the said day until payment thereof. A.D. 1906.

10. The Council shall as on and from the said first day of April one thousand nine hundred and six take over and duly perform and fulfil all the contracts specified in the Second Schedule hereto as shall be current at that date and in addition all such contracts as shall have been made with the consent in writing of the Council under the hand of their clerk by the North Metropolitan Company in the ordinary course of their business in relation to the tramways aforesaid or any of them and shall keep the said Company indemnified against all actions proceedings claims demands costs damages and expenses whatsoever in respect of the acts and defaults of the Council in relation to any such contract. The North Metropolitan Company shall whenever required so to do by notice in writing given by the Council under the hand of their clerk give all necessary notices to determine any of the contracts referred to in this paragraph and shall not determine any of the said contracts without the consent in writing of the Council under the hand of their clerk.

11. The North Metropolitan Company shall afford to the Council all such access to the tramways aforesaid or any of them and other facilities as the Council shall before the said first day of April reasonably require (not involving any breach by the said Company of their statutory or other obligations in relation to the said tramways or any unnecessary interference with the traffic thereon) to enable the Council to commence immediately after that date and the completion of the purchase the reconstruction of the said tramways for electrical traction.

12. The North Metropolitan Company shall also permit the Council forthwith to proceed with the reconstruction for electrical traction of so much of the tramways aforesaid as are situate in Goswell Road as shall be necessary to enable such reconstruction to be carried out simultaneously with the paving works in connexion with the street improvements now

A.D. 1906. being carried out in that road by the Council so as such reconstruction do not involve any such breach of obligation or unnecessary interference with traffic as mentioned in the last preceding clause hereof.

13. Until the said first day of April one thousand nine hundred and six the provisions of the lease of one thousand eight hundred and ninety-seven shall (subject as herein-after provided) remain in full force and effect.

14. The Council shall forthwith on the execution hereof transfer to the North Metropolitan Company the said sums of forty-nine thousand six hundred and eighty-nine pounds seven shillings and sixpence and eleven thousand three hundred and forty-nine pounds four shillings and one penny Metropolitan Two-and-a-half per Cent. Consolidated Stock and twelve thousand two hundred and ninety-one pounds two shillings and fourpence Colonial stocks together with all accrued interest or dividends thereon.

15. The Council hereby withdraws the said notice of the second day of December one thousand nine hundred and two referring to the reconstruction of certain tramways specified in the schedule to such notice and also the said notice of the sixth day of April one thousand nine hundred and three and the North Metropolitan Company is hereby released and discharged from all liability under the lease of one thousand eight hundred and ninety-seven to reconstruct the tramways included in or subject to the lease of one thousand eight hundred and ninety-seven for electrical traction the intention being that any such reconstruction for electrical traction shall be carried out by the Council at their own expense (if and whenever the Council consider it necessary to do so) but the North Metropolitan Company shall not in the meantime before reconstruction and before first April one thousand nine hundred and six be relieved from their liability to repair and maintain such tramways.

16. The North Metropolitan Company is hereby released and discharged from the obligation to comply with the provisions of the sixteenth covenant of the lease of one thousand eight hundred and ninety-seven.

17. If before the electrification of the tramways aforesaid by the Council or before the thirty-first day of March one thousand nine hundred and six whichever shall first happen it shall become necessary in order to comply with the said lease to renew or reconstruct for horse traction any of the tramways included in or subject to the lease of one thousand eight hundred and ninety-seven and the Council shall call upon the North Metropolitan Company in exercise of any rights so to do derived from or under the lease aforesaid to carry out such renewal or reconstruction it shall be lawful for the North Metropolitan Company at any time after April first one thousand nine hundred and six as and when the said tramways are altered by the Council for electrical traction to remove the rails employed in such renewal and reconstruction for horse traction as aforesaid and to retain the same for their own benefit and without making any payment whatever therefor Provided always that if any difference shall

arise between the Council and the North Metropolitan Company as to the necessity of compliance with any requirement of the Council for the renewal or reconstruction for horse traction of any such tramway by the North Metropolitan Company such difference shall be referred to and determined by arbitration under the provisions of the Arbitration Act 1889 and provided also that upon any reference to arbitration under this clause the arbitrator shall in deciding as to the necessity of such compliance take into account the fact that the Council intend to adopt electrical power for working the tramways included in or subject to the lease of one thousand eight hundred and ninety-seven and to themselves reconstruct such tramways for electrical traction under the provisions of clause 27 of the said lease.

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18. The North Metropolitan Company shall as from the first day of August one thousand nine hundred and one to the thirty-first day of March one thousand nine hundred and six pay to the Council in respect of the Agincourt Road Tramway the following annual rent (viz.) two hundred and sixty-two pounds five shillings and eightpence being eight per cent. per annum upon the total cost (including the expenses incurred in obtaining parliamentary powers and other incidental expenses) as certified by the comptroller of the Council of the purchase or construction of the Agincourt Road Tramway and the arrears (if any) of such rent due at the date of these presents shall be payable on the signing of this agreement to the Council by the North Metropolitan Company and the rent accruing due after the date of these presents shall be payable by equal quarterly payments on the quarterly days specified in the lease of one thousand eight hundred and ninety-seven:

And it is hereby further agreed and declared that for the purpose of computing the amount of the rent by the reddendum of the lease of one thousand eight hundred and ninety-seven thirdly reserved as from the first day of August one thousand nine hundred and one until the thirty-first day of March one thousand nine hundred and six there shall be added to the amount as therein specified and agreed of the gross receipts in one thousand eight hundred and ninety-five in respect of the Agincourt Road Tramway sums calculated at the rate of two thousand pounds per mile for the year ending the thirty-first day of July one thousand nine hundred and two of two thousand seven hundred and fifty pounds per mile in the year ending the thirty-first day of July one thousand nine hundred and three of three thousand five hundred pounds per mile in the year ending the thirty-first day of July one thousand nine hundred and four of four thousand two hundred and fifty pounds per mile in the year ending the thirty-first day of July one thousand nine hundred and five and of three thousand three hundred and thirty-three pounds per mile for the period August first one thousand nine hundred and five to March thirty-first one thousand nine hundred and six (inclusive) and the rents to be paid and the sums to be added to the said agreed amount of

A.D. 1906. the gross receipts of one thousand eight hundred and ninety-five in respect of the Agincourt Road Tramway under this clause shall be taken in full satisfaction of and be substituted for the rents to be paid and the sums (if any) to be added to the amount of the said gross receipts in respect of the Agincourt Road Tramway under the thirty-second covenant of the lease of one thousand eight hundred and ninety-seven. The arbitration proceedings now pending between the North Metropolitan Company and the Council with regard to the Agincourt Road Tramway shall be forthwith stayed each party paying their own costs in such proceedings.

19. The said action now pending in the King's Bench Division of the High Court of Justice shall be dismissed upon the terms that every party to the action shall pay their own costs in such action and shall be bound by the provisions of these presents and the Council will use their best endeavours to obtain the consent of the Attorney-General to such dismissal and any party hereto shall be at liberty to apply for and obtain such dismissal without the production of any further or other assent than the production of this indenture and without further proof of the assent of the Attorney-General.

20. The Council shall not until the tenth day of August one thousand nine hundred and ten exercise the power of purchase over the Stamford Hill Tramway given to them by the Tramways Act 1870 section 43 except in the case of any order made by the Board of Trade under sections 41 or 42 of the said Act but after the said tenth August one thousand nine hundred and ten upon the terms and subject to the conditions specified in section 43 of the said Act the Council shall be entitled to purchase the Stamford Hill Tramway. And (subject to the sanction of Parliament and to the consent in writing of the corporation of Hornsey being obtained which consent the Metropolitan Electric Company will use their best endeavours to obtain forthwith) the Metropolitan Electric Company and all other necessary parties (if any) will after August tenth one thousand nine hundred and ten transfer the Boundary Tramway to the Council at a price to be settled in case of difference by arbitration and in accordance with the provisions of section 43 of the Tramways Act 1870.

21. In consideration of the premises the Council for themselves and their successors covenant with the Metropolitan Electric Company their successors and assigns that the Council and their successors will not until the thirty-first day of December one thousand nine hundred and thirty in any way exercise the power of purchase over the Green Lanes Tramway and the Seven Sisters Road Tramway or either of them which is conferred upon the Council by section 43 of the Tramways Act 1870 except in the case of any order being made by the Board of Trade under sections 41 or 42 of the said Act.

In witness whereof the Council and the companies parties hereto of the second and third parts have caused their respective common seals to be affixed hereunto the day and year first above written. A.D. 1906.

Sealed by order

G. L. GOMME
Clerk of the Council.

Seal of the
London County
Council.

The common seal of the North Metropolitan Tramways Company was hereunto affixed in the presence of

ERNEST HAWKINS }
JAMES DEVONSHIRE } Directors.
W. P. FARQUHARSON Secretary.

Seal of the
North
Metropolitan
Tramways
Company.

The common seal of the Metropolitan Electric Tramways Limited was hereunto affixed in the presence of

JAMES DEVONSHIRE }
GEO. RICHARDSON } Directors.
A. L. BARBER Secretary.

Seal of the
Metropolitan
Electric
Tramways
Limited.

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